

Petition to Expunge a Felony Conviction Not Covered by Sections 2 or 3, I.C. 35-38-9-4

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

This packet is prepared for one route under I.C. 35-38-9-4: the relief named at the top of this page.

What relief this section gives, and what it does not

- The grant on this section is discretionary. The court may grant the petition; it is not required to, even where every statutory condition is met.
- The effect is the Section 7 effect. The court records and the public records stay public and are clearly and visibly marked as expunged. This is not the Section 6 sealing that applies to a misdemeanour or a Class D or Level 6 felony.

What is in this packet

- Verified Petition for Expungement of Conviction Records - the document you file, required. Composed for you from Indiana authority and prefilled with the facts you gave.
- Order on the Verified Petition for Expungement of Conviction Records - the order you give the court to sign, required. Composed for you from Indiana authority and prefilled with the facts you gave.
- CCA-XP-0220-7010, the conviction insert for this section, carrying the facts, findings and exhibit pages that the petition and the order both call for - filed together with the petition, required. Delivered exactly as Indiana Coalition for Court Access published it, 3 pages. The SHA-256 of that 3-page publication is b613c145701a5185fd11d4df61efad5d3b352fc13987581531267868724fbf4b. It arrives blank.
- CCA-GF-0120-3016, the Appearance by Unrepresented Person in Expungement Matter, which also carries the certificate of service to the county prosecutor - filed together with the petition, included only where its condition applies. Delivered exactly as Indiana Coalition for Court Access published it: 2 pages, taken from pages 1, 2 of the issuer's 15-page publication. The SHA-256 of that whole 15-page publication, not of the pages delivered here, is b04f2941c91f903e8b8a1718ff4f9bd9120f3744c97354fd810c296f89d041c5. It arrives blank.
- CCA-XP-0120-7002 Form ACR, the Notice of Exclusion of Confidential Information from Public Access - filed together with the petition, required. Delivered exactly as Indiana Coalition for Court Access published it: 1 page, taken from page 7 of the issuer's 15-page publication. The SHA-256 of that whole 15-page publication, not of the page delivered here, is b04f2941c91f903e8b8a1718ff4f9bd9120f3744c97354fd810c296f89d041c5. It arrives blank.
- Confidential Information Form, which carries the full Social Security number and is filed as a confidential document - filed together with the petition, required. Delivered exactly as Indiana Coalition for Court Access published it: 1 page, taken from page 8 of the issuer's 15-page publication. The SHA-256 of that whole 15-page publication, not of the page delivered here, is b04f2941c91f903e8b8a1718ff4f9bd9120f3744c97354fd810c296f89d041c5. It arrives blank.

The blank official forms, and what this packet does not do to them

The four supporting forms above are the issuer's own documents. This packet delivers them unchanged and writes nothing on them, so every blank on them is yours to complete by hand. This packet does not carry a field-by-field map of those four forms, and it does not tell you what each individual box on them means; work through them against the form's own printed instructions, and stop and get legal help wherever a box is not clear. The two documents this packet does prefill are the petition and the proposed order, and every blank left on those two is listed below.

What you must supply before filing

Check every prefilled fact against your own court record and your certified limited criminal history, and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Verified Petition for Expungement of Conviction Records

Blank on the document: Petitioner mailing address

What you must supply: your current mailing address, written by hand, so the court and the prosecuting attorney can reach you

Verified Petition for Expungement of Conviction Records

Blank on the document: Petitioner telephone number and email address

What you must supply: the telephone number and email address you want the court to use

Verified Petition for Expungement of Conviction Records

Blank on the document: Last four digits of the Social Security number

What you must supply: the last four digits of your Social Security number, and only the last four - the full number goes on the Confidential Information Form

Verified Petition for Expungement of Conviction Records

Blank on the document: Every Indiana conviction in any county, and whether each is eligible yet

What you must supply: the full list from your certified limited criminal history, county by county, with the eligibility date of each

Verified Petition for Expungement of Conviction Records

Blank on the document: Whether the offense involved serious bodily injury

What you must supply: the answer, taken from your own court record and from legal advice if it is not obvious

Verified Petition for Expungement of Conviction Records

Blank on the document: Additional information the petitioner wants the court to know

What you must supply: anything else you want the court to know, in your own words

What you must obtain or confirm before filing (15 items)

- Obtain a document (required, required before filing): Request a certified limited criminal history from the Indiana State Police. What it costs and how long it takes both change, so confirm the current fee and turnaround with the State Police when you request it. Obtained from: Indiana State Police.

- Confirm an answer (required, required before filing): Check your answer to "List every conviction you have in Indiana, in any county, and whether each is eligible yet." against Certified limited criminal history from the Indiana State Police, and correct the packet if they disagree.

- Obtain a document (required, required before filing): Obtain Confirmation that all fines, fees, costs and restitution are satisfied. Ask the clerk for the balance on the cause number, including any restitution. Obtained from: Clerk of the court of conviction.

- Confirm an answer (required, required before filing): Check your answer to "Have you paid all fines, fees and court costs, and satisfied any restitution?" against Confirmation that all fines, fees, costs and restitution are satisfied, and correct the packet if they disagree.

- Obtain a document (conditional, required before filing): Obtain Written prosecutor consent. Ask the prosecuting attorney for written consent. Silence is not consent. Obtained from: Prosecuting attorney of the county of conviction. Condition: Required to file a Section 5 petition, and required to shorten the waiting period on any conviction expungement.
- Confirm an answer (conditional, required before filing): Check your answer to "Has the prosecuting attorney given written consent, either to shorten the waiting period or to allow the filing?" against Written prosecutor consent, and correct the packet if they disagree. Condition: Required to file a Section 5 petition, and required to shorten the waiting period on any conviction expungement.
- Complete a field (required, required before filing): Verification and signature - Petition, verification block.
- Complete a field (required, required before filing): Section classification - Petition, offence classification.
- Complete a field (required, required before filing): Additional-information narrative - Petition, additional information.
- Complete a field (required, required before filing): Full Social Security number - Confidential Information Form.
- Sign (required, required before filing): The petition is verified, and you sign it yourself.
- Pay a fee (required, required before filing): A civil filing fee applies to Sections 2 through 5. This packet has not confirmed the amount, whether it is charged separately in each county, or whether an indigency waiver is available.
- Apply for a fee waiver (conditional, required before filing): This packet has not confirmed whether an indigency waiver is available to you. Condition: Applies only if you cannot pay the filing fee.
- Serve a party (required): Service on the prosecuting attorney under the Trial Rules. The CCA appearance form carries a certificate of service to the county prosecutor; follow the form.
- File (required): File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.

Where this is filed

- Venue: A circuit or superior court in the county of conviction. If you have convictions in more than one county you file in each of them, and those filings count as a single petition only if they all fall inside a 365-day window. Case type XP under Administrative Rule 8(B)(3).
- Destination (court): Circuit or superior court in the county of conviction
- The petition is served on the prosecuting attorney under the Trial Rules. Where the prosecutor does not object or waives objection, the court may grant without a hearing under Sec. 35-38-9-9(a). A victim may submit an oral or written statement.
- Filing: File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.

What it costs

- Fees: A civil filing fee applies to Sections 2 through 5. This packet has not confirmed the amount, whether it is charged separately in each county, or whether an indigency waiver is available.
- Fee waiver: This packet has not confirmed whether an indigency waiver is available to you.
- The record held here does not state the amount, whether it is charged per county, or whether an indigency waiver exists. This packet does not guess at any of the three. Ask the clerk of the court you are filing in for the current civil filing fee and for whatever waiver that court accepts.

Notice, objection and service

- Notice: The petition is served on the prosecuting attorney under the Trial Rules. A victim is entitled to submit an oral or written statement in support or opposition, and you have no right to cross-examine them on it.
- Service: Service on the prosecuting attorney under the Trial Rules. The CCA appearance form carries a certificate of service to the county prosecutor; follow the form.
- The record held here does not state a deadline for the prosecuting attorney's response or a number of days between service and any hearing, so this packet states none.

Signing

- Signature: The petition is verified, and you sign it yourself.
- Notarization: Not required.

Rules and limits that apply to your petition (7 rules)

- Expungement in Indiana does not destroy your records. Under Sec. 35-38-9-1(k) they are sealed, or access to them is restricted. The Office of Judicial Administration states plainly that court records are not deleted or destroyed under I.C. 35-38-9.
- Put only the last four digits of your Social Security number on the petition. Your full number goes on the Confidential Information Form, which is filed as a confidential document together with the Notice of Exclusion of Confidential Information from Public Access.
- Your expungement case file is public until the order is granted.
- You get one petition in your lifetime under Sec. 35-38-9-9(i). If you have convictions in more than one county, petitions filed in separate counties count as a single petition only when they are all filed inside one 365-day window. When you file therefore matters as much as what you file, so get legal help with the timing before you file anything.
- If you have any conviction that is not yet eligible, do not file until you have legal advice. Under *Chastain v. State* you cannot later use the liberal amendment rule to add records that were not yet eligible when your first petition was filed, so filing now can permanently cost you a record that becomes eligible later.

- Under the Section 7 effect your court records and public records stay public. They must be clearly and visibly marked as expunged, and the agencies listed in the order add an entry noting the expunged status. This is weaker than the Section 6 sealing that applies to a misdemeanor or a Class D or Level 6 felony.

- The grant on this section is discretionary. The court may grant your petition; it is not required to, even where you meet every statutory condition.

Fields deliberately left blank

- Sign and date the verification on the petition yourself, after reading it. The petition is verified, and signing it is an affirmation under the penalties for perjury.

- Do not sign, date or complete any part of the proposed order. It is delivered unexecuted, and its page prints "COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided." Every line listed below is printed on that order under the label shown here, and every one of them is the court's or the clerk's to complete:

- "Findings of the court on the verified petition" on the proposed order - the findings are the court's, made by a preponderance on the statutory conditions

- "Whether the petition is granted or denied" on the proposed order - granting or denying the petition is the court's decision, and nothing in this packet decides it

- "Ordered, adjudged and decreed paragraphs" on the proposed order - the decretal paragraphs are the court's judgment

- "Entities the court directs to seal or restrict records" on the proposed order - the sealing directives are the court's, and the related arrest records are ordered expunged by the same order under I.C. 35-38-9-6(g) and 35-38-9-7(e)

- "Date of the court order" on the proposed order - the court dates its own order

- "Signature of the judge on the order" on the proposed order - the judge signs if and when the court enters the order

- "Distribution list completed by the clerk" on the proposed order - distribution of a signed order is the clerk's act

- Leave the XP cause number and the filed-on stamp blank. The clerk supplies both when the petition is filed.

Stop and get legal help before you file (all 13)

- Stop 1 of 13: The prosecuting attorney objects to your petition, or files a notice in opposition.

- Stop 2 of 13: A victim submits a statement opposing your petition.

- Stop 3 of 13: The court sets a hearing on your petition.

- Stop 4 of 13: You have convictions in more than one county and part of the 365-day window has already been used.

- Stop 5 of 13: One of your convictions is not yet eligible and you want to file now. This is the situation *Chastain v. State* makes permanently costly.

- Stop 6 of 13: You have already filed a Sections 2 through 5 petition.

- Stop 7 of 13: It is unclear which of Sections 2, 3, 4 and 5 covers your conviction, or the answer turns on whether your offence caused serious bodily injury.
- Stop 8 of 13: You are a sex or violent offender, or you are subject to registration.
- Stop 9 of 13: Any of your fines, fees, costs or restitution are unpaid or disputed.
- Stop 10 of 13: You have charges pending anywhere, or you are in a pretrial diversion programme.
- Stop 11 of 13: Your record involves a commercial driver's licence and 49 C.F.R. 384.226.
- Stop 12 of 13: Your immigration status, your firearm rights, a professional licence or a CDL could be affected.
- Stop 13 of 13: You want to challenge the conviction itself rather than expunge it.

Hard eligibility limits (4 exclusions)

- Offences involving serious bodily injury.
- Convictions excluded by the statutory exclusion structure.
- Charges pending anywhere.
- Unpaid fines, fees, court costs or unsatisfied restitution.

Waiting periods:

- The later of the date of conviction or completion of the sentence: 8 years from conviction or 3 years from completion of the sentence, whichever is later, shortened by the prosecuting attorney's written consent

What this packet could not answer for you (2 open questions)

- How much the civil filing fee is for a Sections 2 through 5 petition, whether it is charged separately in each county, and whether an indigency waiver is available. Ask the clerk of the court you are filing in.
- Where each of the statewide exclusions comes from in the statute - sex or violent offenders, official misconduct, homicide, human trafficking, two or more deadly-weapon felonies, elected officials. This packet has not confirmed whether each one is stated in Sec. 35-38-9-2 through 5 or somewhere else, so check any exclusion that might apply to you against the current text of the statute, with legal help.

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Petition to Expunge a Felony Conviction Not Covered by Sections 2 or 3, I.C. 35-38-9-4

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

- Filing: File the verified petition, order, appearance, Notice of Exclusion and Confidential Information Form with a circuit or superior court in the county of conviction, as case type XP.
- Where: Circuit or superior court in the county of conviction. The petition is served on the prosecuting attorney under the Trial Rules. Where the prosecutor does not object or waives objection, the court may grant without a hearing under Sec. 35-38-9-9(a). A victim may submit an oral or written statement.
- Venue: A circuit or superior court in the county of conviction. If you have convictions in more than one county you file in each of them, and those filings count as a single petition only if they all fall inside a 365-day window. Case type XP under Administrative Rule 8(B)(3).
- What it costs: A civil filing fee applies to Sections 2 through 5. This packet has not confirmed the amount, whether it is charged separately in each county, or whether an indigency waiver is available.
- Fee waiver: This packet has not confirmed whether an indigency waiver is available to you.
- Service: Service on the prosecuting attorney under the Trial Rules. The CCA appearance form carries a certificate of service to the county prosecutor; follow the form.

What you file, in order:

- Verified Petition for Expungement of Conviction Records, from this packet, completed and signed by you.
- Order on the Verified Petition for Expungement of Conviction Records, from this packet, tendered unsigned and otherwise blank. Its page prints "COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided." Do not sign it, do not date it and do not fill in any of its lines; these instructions list every one of them and each belongs to the court or the clerk.
- CCA-XP-0220-7010, 3 pages, completed by hand.
- CCA-GF-0120-3016, 2 pages, completed by hand.
- CCA-XP-0120-7002 Form ACR, 1 page, completed by hand.
- Confidential Information Form, 1 page, completed by hand.

The expungement case file is public until the order is granted. Where the prosecuting attorney does not object or waives objection, the court may grant without a hearing under I.C. 35-38-9-9(a); a victim may submit an oral or written statement in support or opposition.